

Software License and Support Agreement

1. Parties

This Software License and Support Agreement ("Agreement") is entered into between Meridian Software Systems Inc. ("Licensor") and Client, effective as of the Effective Date stated in the Order Form.

2. Payment Terms

2.1 Client shall pay all license and support fees within fifteen (15) days of invoice date. 2.2 Late payments accrue interest at 2.5% per month, and Licensor may suspend access to the software after ten (10) days of non-payment following written notice.

3. Confidentiality

3.1 Each party shall protect the other's confidential information using reasonable care. 3.2 Obligations survive for four (4) years following termination, longer than typical but not unbounded.

4. Limitation of Liability

4.1 Licensor's total liability under this Agreement shall not exceed the fees paid by Client in the three (3) months preceding the claim, a notably shorter lookback period than is standard. 4.2 Client's liability for unauthorized use or distribution of the licensed software is uncapped.

5. Indemnification

5.1 Licensor shall indemnify Client only against third-party intellectual property infringement claims, and only up to the limitation of liability cap in Section 4. 5.2 Client shall indemnify Licensor for any claim arising from Client's use of the software in violation of this Agreement, with no cap.

6. Termination

6.1 Licensor may terminate this Agreement for Client's uncured breach after five (5) days' notice, a shorter cure period than standard. 6.2 Client may terminate for convenience only at the end of the then-current annual term, with ninety (90) days' prior notice.

7. Assignment

7.1 Neither party may assign this Agreement without the other's written consent, except that Licensor may assign freely in connection with a merger, acquisition, or sale of assets.

8. Force Majeure

8.1 Neither party is liable for delay due to events beyond its reasonable control, except that this Section does not excuse Client's payment obligations.

9. Dispute Resolution

9.1 Disputes shall be resolved by binding arbitration administered by the American Arbitration Association, seated in Licensor's principal place of business.

10. Governing Law

10.1 This Agreement is governed by the laws of the State of Illinois.